

would not insert any of them in a settlement under a direction to insert "usual" or "proper" powers; but would in the absence of special directions allow the statutory powers to take effect without variation.

28. **Conveyancing Act.**—It may further be observed that by the Conveyancing and Law of Property Act, 1881 (*e*), "it is declared that the powers given by the Act to any person and the covenants, provisions, stipulations and words which under the Act are to be deemed included or implied in any instrument, shall be deemed *proper* powers, covenants, provisions, stipulations and words to be given by or to be contained in any such instrument," and all persons in a fiduciary position and their solicitor are exempted from any [*130] * obligation to exclude the operation of the Act where such exclusion is possible.]

29. **Powers of sale.**—If a settlement of stock with a power of varying securities contain a covenant to settle real estate upon the like trusts, and with the like powers, a power of sale and exchange is implied, as corresponding to the power of *varying securities* (*a*).

30. **Multiplication of charges.**—Trusts are often created by words of reference to other trusts, and where this is the case, there should be a proviso, where such is the intention, that charges on the estate shall not be increased or multiplied. Should the clause, however, be omitted, the Court will exercise its judgment on the question whether the duplication of charges was or not intended by the parties; and as a general rule a referential trust ought not to be so read as to create a duplication (*b*).

SECTION II.

OF IMPLIED TRUSTS.

1. **General rule.**—Wherever a person, having a power of disposition over property, manifests any intention with

[*e*] 44 & 45 Vict. c. 41, s. 66.] greaves' Contract, 25 Ch. D. 595;]
 (*a*) Williams v. Carter, Append. and see Horne v. Barton, Jac. 440.
 to Sug. Treat. on Powers, p. 945, 8th ed.; Elton v. Elton (No. 2), 27 Beav. 634; [*Re* Garnett Orme and Har- (b) Hindle v. Taylor, 5 De G. M. & G. 577; Boyd v. Boyd, 9 L. T. N. S. 166.]